

SENATE CHAMBER
STATE OF OKLAHOMA

DISPOSITION

☒ FLOOR AMENDMENT

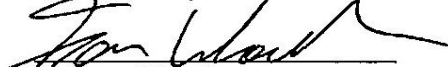
No. 1

☐ COMMITTEE AMENDMENT

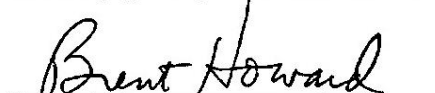
(Date)

I move to amend House Bill No. 3648 by substituting the attached floor substitute (Request # 4002) for the title, enacting clause, and entire body of the measure.

Submitted by:


Senator Woods

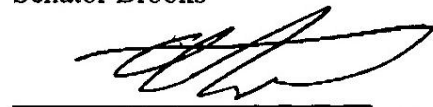
I hereby grant permission for the floor substitute to be adopted.


Senator Howard, Chair (required)

Senator Gollihare

Senator Boren


Senator Brooks


Senator Paxton, President Pro Tempore


Senator Jech

Senator Jeff


Senator Rosino

Senator Standridge

Senator Daniels, Majority Floor
Leader

Note: Judiciary Committee majority requires five (5) members' signatures.

Woods-TEK-FS-HB3648
4/28/2026 9:53 AM

(Floor Amendments Only)

Date and Time Filed: 4-28-26

10:27 am 

☐ Untimely

☐ Amendment Cycle Extended

☐ Secondary Amendment

STATE OF OKLAHOMA

2nd Session of the 60th Legislature (2026)

FLOOR SUBSTITUTE
FOR ENGROSSED

HOUSE BILL NO. 3648

By: Stinson and Archer of the
House

and

Woods of the Senate

FLOOR SUBSTITUTE

An Act relating to The Governmental Tort Claims Act;
amending 51 O.S. 2021, Sections 152, as last amended
by Section 1, Chapter 314, O.S.L. 2025, and 154, as
amended by Section 2, Chapter 314, O.S.L. 2025 (51
O.S. Supp. 2025, Sections 152 and 154), which relate
to definitions and extent of liability; modifying
definition; authorizing award of certain costs and
fees; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 51 O.S. 2021, Section 152, as last
amended by Section 1, Chapter 314, O.S.L. 2025 (51 O.S. Supp. 2025,
Section 152), is amended to read as follows:

Section 152. As used in The Governmental Tort Claims Act:

1. "Action" means a proceeding in a court of competent
jurisdiction by which one party brings a suit against another;

1 2. "Agency" means any board, commission, committee, department
2 or other instrumentality or entity designated to act in behalf of
3 the state or a political subdivision;

4 3. "Charitable health care provider" means a person who is
5 licensed, certified, or otherwise authorized by the laws of this
6 state to administer health care in the ordinary course of business
7 or the practice of a profession and who provides care to a medically
8 indigent person, as defined in paragraph 9 of this section, with no
9 expectation of or acceptance of compensation of any kind;

10 4. "Claim" means any written demand presented by a claimant or
11 the claimant's authorized representative in accordance with The
12 Governmental Tort Claims Act to recover money from the state or
13 political subdivision as compensation for an act or omission of a
14 political subdivision or the state or an employee;

15 5. "Claimant" means the person or the person's authorized
16 representative who files notice of a claim in accordance with The
17 Governmental Tort Claims Act. Only the following persons and no
18 others may be claimants:

- 19 a. any person holding an interest in real or personal
20 property which suffers a loss, provided that the claim
21 of the person shall be aggregated with claims of all
22 other persons holding an interest in the property and
23 the claims of all other persons which are derivative
24

1 of the loss, and that multiple claimants shall be
2 considered a single claimant,

- 3 b. the individual actually involved in the accident or
4 occurrence who suffers a loss, provided that the
5 individual shall aggregate in the claim the losses of
6 all other persons which are derivative of the loss, or
7 c. in the case of death, an administrator, special
8 administrator or a personal representative who shall
9 aggregate in the claim all losses of all persons which
10 are derivative of the death;

11 6. "Community health care provider" means:

- 12 a. a health care provider who volunteers services at a
13 community health center that has been deemed by the
14 U.S. Department of Health and Human Services as a
15 federally qualified health center as defined by 42
16 U.S.C., Section 1396d(1)(2)(B),
17 b. a health provider who provides services to an
18 organization that has been deemed a federally
19 qualified look-alike community health center, and
20 c. a health care provider who provides services to a
21 community health center that has made application to
22 the U.S. Department of Health and Human Services for
23 approval and deeming as a federally qualified look-
24 alike community health center in compliance with

1 federal application guidance, and has received
2 comments from the U.S. Department of Health and Human
3 Services as to the status of such application with the
4 established intent of resubmitting a modified
5 application, or, if denied, a new application, no
6 later than six (6) months from the date of the
7 official notification from the U.S. Department of
8 Health and Human Services requiring resubmission of a
9 new application;

10 7. "Employee" means any person who is authorized to act in
11 behalf of a political subdivision or the state whether that person
12 is acting on a permanent or temporary basis, with or without being
13 compensated or on a full-time or part-time basis.

14 a. Employee also includes:

- 15 (1) all elected or appointed officers, members of
16 governing bodies and other persons designated to
17 act for an agency or political subdivision, but
18 the term does not mean a person or other legal
19 entity while acting in the capacity of an
20 independent contractor or an employee of an
21 independent contractor,
22 (2) from September 1, 1991, through June 30, 1996,
23 licensed physicians, licensed osteopathic
24 physicians and Certified Nurse-Midwives providing

1 prenatal, delivery or infant care services to
2 State Department of Health clients pursuant to a
3 contract entered into with the State Department
4 of Health in accordance with paragraph 3 of
5 subsection C of Section 1-106 of Title 63 of the
6 Oklahoma Statutes but only insofar as services
7 authorized by and in conformity with the terms of
8 the contract and the requirements of Section 1-
9 233 of Title 63 of the Oklahoma Statutes, and

10 (3) any volunteer, full-time or part-time firefighter
11 when performing duties for a fire department
12 provided for in subparagraph j of paragraph 12 of
13 this section.

14 b. For the purposes of The Governmental Tort Claims Act,
15 the following are employees of this state, regardless
16 of the place in this state where duties as employees
17 are performed:

18 (1) physicians acting in an administrative capacity,

19 (2) resident physicians and resident interns

20 participating in a graduate medical education
21 program of the University of Oklahoma Health
22 Sciences Center, the Oklahoma State University
23 College of Osteopathic Medicine, a public trust
24 created pursuant to Section 3224 of Title 63 of

1 the Oklahoma Statutes and any sole member not-
2 for-profit corporation of the public trust and
3 any sole member not-for-profit subsidiary of such
4 corporation, or the Department of Mental Health
5 and Substance Abuse Services,

6 (3) faculty members and staff of the University of
7 Oklahoma Health Sciences Center, the Oklahoma
8 State University College of Osteopathic Medicine,
9 or a public trust created pursuant to Section
10 3224 of Title 63 of the Oklahoma Statutes and any
11 sole member not-for-profit corporation of the
12 public trust and any sole member not-for-profit
13 subsidiary of such corporation, while engaged in
14 teaching duties,

15 (4) physicians who practice medicine or act in an
16 administrative capacity as an employee of an
17 agency of this state,

18 (5) physicians who provide medical care to inmates
19 pursuant to a contract with the Department of
20 Corrections,

21 (6) any person who is licensed to practice medicine
22 pursuant to Title 59 of the Oklahoma Statutes,
23 who is under an administrative professional
24 services contract with the Oklahoma Health Care

1 Authority under the auspices of the Oklahoma
2 Health Care Authority Chief Medical Officer, and
3 who is limited to performing administrative
4 duties such as professional guidance for medical
5 reviews, reimbursement rates, service
6 utilization, health care delivery and benefit
7 design for the Oklahoma Health Care Authority,
8 only while acting within the scope of such
9 contract,

10 (7) licensed medical professionals under contract
11 with city, county, or state entities who provide
12 medical care to inmates or detainees in the
13 custody or control of law enforcement agencies,

14 (8) licensed mental health professionals as defined
15 in Sections 1-103 and 5-502 of Title 43A of the
16 Oklahoma Statutes, who are conducting initial
17 examinations of individuals for the purpose of
18 determining whether an individual meets the
19 criteria for emergency detention as part of a
20 contract with the Department of Mental Health and
21 Substance Abuse Services, and

22 (9) licensed mental health professionals as defined
23 in Sections 1-103 and 5-502 of Title 43A of the
24 Oklahoma Statutes, who are providing mental

1 health or substance abuse treatment services
2 under a professional services contract with the
3 Department of Mental Health and Substance Abuse
4 Services and are providing such treatment
5 services at a state-operated facility.

6 Physician faculty members and physician staff of the
7 University of Oklahoma Health Sciences Center, the
8 Oklahoma State University College of Osteopathic
9 Medicine, or a public trust created pursuant to
10 Section 3224 of Title 63 of the Oklahoma Statutes and
11 any sole member not-for-profit corporation of the
12 public trust and any sole member not-for-profit
13 subsidiary of such corporation not acting in an
14 administrative capacity or engaged in teaching duties
15 are not employees or agents of the state.

16 c. For the purposes of The Governmental Tort Claims Act,
17 employee shall include independent contractors and
18 employees of independent contractors while actively
19 engaged in the transport of individuals in need of
20 initial assessment, emergency detention, or protective
21 custody as authorized by Section 1-110 of Title 43A of
22 the Oklahoma Statutes.

23 d. Except as provided in subparagraph b of this
24 paragraph, in no event shall the state be held liable

1 for the tortious conduct of any physician, resident
2 physician or intern while practicing medicine or
3 providing medical treatment to patients.

4 e. For purposes of The Governmental Tort Claims Act,
5 members of the state military forces on state active
6 duty orders or on Title 32 active duty orders are
7 employees of this state, regardless of the place,
8 within or outside this state, where their duties as
9 employees are performed;

10 8. "Loss" means death or injury to the body or rights of a
11 person or damage to real or personal property or rights therein;

12 9. "Medically indigent" means a person requiring medically
13 necessary hospital or other health care services for the person or
14 the dependents of the person who has no public or private third-
15 party coverage, and whose personal resources are insufficient to
16 provide for needed health care;

17 10. "Municipality" means any incorporated city or town, and all
18 institutions, agencies or instrumentalities of a municipality;

19 11. "Occurrence" means a loss arising out of an accident or
20 event or a continuous or repeated exposure to substantially the same
21 general harmful conditions. All losses arising out of an accident
22 or event or a continuous or repeated exposure to substantially the
23 same general harmful conditions shall be deemed to have arisen out
24 of one occurrence. For purposes of determining accrual under The

1 Governmental Tort Claims Act, a claim based on a continuous,
2 repeated, or ongoing accident, event, or exposure shall not be
3 deemed to have accrued until such accident, event, or exposure has
4 ceased or been abated;

5 12. "Political subdivision" means:

- 6 a. a municipality,
- 7 b. a school district, including, but not limited to, a
8 technology center school district established pursuant
9 to Section 4410, 4411, 4420 or 4420.1 of Title 70 of
10 the Oklahoma Statutes, or a public library as defined
11 pursuant to Section 1-104 of Title 65 of the Oklahoma
12 Statutes,
- 13 c. a county,
- 14 d. a public trust where the sole beneficiary or
15 beneficiaries are a city, town, school district or
16 county. For purposes of The Governmental Tort Claims
17 Act, a public trust shall include:

- 18 (1) a municipal hospital created pursuant to Sections
19 30-101 through 30-109 of Title 11 of the Oklahoma
20 Statutes, a county hospital created pursuant to
21 Sections 781 through 796 of Title 19 of the
22 Oklahoma Statutes, or is created pursuant to a
23 joint agreement between such governing
24 authorities, that is operated for the public

benefit by a public trust created pursuant to Sections 176 through 180.4 of Title 60 of the Oklahoma Statutes and managed by a governing board appointed or elected by the municipality, county, or both, who exercises control of the hospital, subject to the approval of the governing body of the municipality, county, or both,

(2) a public trust created pursuant to Sections 176 through 180.4 of Title 60 of the Oklahoma Statutes after January 1, 2009, the primary purpose of which is to own, manage, or operate a public acute care hospital in this state that serves as a teaching hospital for a medical residency program provided by a college of osteopathic medicine and provides care to indigent persons, and

(3) a corporation in which all of the capital stock is owned, or a limited liability company in which all of the member interest is owned, by a public trust,

e. for the purposes of The Governmental Tort Claims Act only, a housing authority created pursuant to the provisions of the Oklahoma Housing Authorities Act,

- 1 f. for the purposes of The Governmental Tort Claims Act
2 only, corporations organized not for profit pursuant
3 to the provisions of the Oklahoma General Corporation
4 Act for the primary purpose of developing and
5 providing rural water supply and sewage disposal
6 facilities to serve rural residents,
- 7 g. for the purposes of The Governmental Tort Claims Act
8 only, districts formed pursuant to the Rural Water,
9 Sewer, Gas and Solid Waste Management Districts Act,
- 10 h. for the purposes of The Governmental Tort Claims Act
11 only, master conservancy districts formed pursuant to
12 the Conservancy Act of Oklahoma,
- 13 i. for the purposes of The Governmental Tort Claims Act
14 only, a fire protection district created pursuant to
15 the provisions of Section 901.1 et seq. of Title 19 of
16 the Oklahoma Statutes,
- 17 j. for the purposes of The Governmental Tort Claims Act
18 only, a benevolent or charitable corporate volunteer
19 or full-time fire department for an unincorporated
20 area created pursuant to the provisions of Section 592
21 et seq. of Title 18 of the Oklahoma Statutes,
- 22 k. for purposes of The Governmental Tort Claims Act only,
23 an emergency services provider rendering services
24 pursuant to an existing contract between the emergency

1 services provider and the State Department of Health.
2 Provided, however, that the acquisition of commercial
3 liability insurance covering the activities of such
4 emergency services provider performed within this
5 state shall not operate as a waiver of any of the
6 limitations, immunities or defenses provided for
7 political subdivisions pursuant to the terms of The
8 Governmental Tort Claims Act,

9 1. for purposes of The Governmental Tort Claims Act only,
10 a conservation district created pursuant to the
11 provisions of the Conservation District Act,

12 m. for purposes of The Governmental Tort Claims Act,
13 districts formed pursuant to the Oklahoma Irrigation
14 District Act,

15 n. for purposes of The Governmental Tort Claims Act only,
16 any community action agency established pursuant to
17 Sections 5035 through 5040.1 of Title 74 of the
18 Oklahoma Statutes,

19 o. for purposes of The Governmental Tort Claims Act only,
20 any organization that is designated as a youth
21 services agency, pursuant to Section 2-7-306 of Title
22 10A of the Oklahoma Statutes,

- 1 p. for purposes of The Governmental Tort Claims Act only,
2 any judge presiding over a drug court, as defined by
3 Section 471.1 of Title 22 of the Oklahoma Statutes,
4 q. for purposes of The Governmental Tort Claims Act only,
5 any child-placing agency licensed by this state to
6 place children in foster family homes,
7 r. for purposes of The Governmental Tort Claims Act only,
8 a circuit engineering district created pursuant to
9 Section 687.1 of Title 69 of the Oklahoma Statutes,
10 s. for purposes of The Governmental Tort Claims Act only,
11 a substate planning district, regional council of
12 government or other entity created pursuant to Section
13 1001 et seq. of Title 74 of the Oklahoma Statutes, and
14 t. for purposes of The Governmental Tort Claims Act only,
15 a regional transportation authority created pursuant
16 to Section 1370.7 of Title 68 of the Oklahoma Statutes
17 including its contract operator and any railroad
18 operating in interstate commerce that sells a property
19 interest or provides services to a regional
20 transportation authority or allows the authority to
21 use the property or tracks of the railroad for the
22 provision of public passenger rail service to the
23 extent claims against the contract operator or
24 railroad arise out of or are related to or in

1 connection with such property interest, services or
2 operation of the public passenger rail service.
3 Provided, the acquisition of commercial liability
4 insurance to cover the activities of the regional
5 transportation authority, contract operator or
6 railroad shall not operate as a waiver of any
7 liabilities, immunities or defenses provided pursuant
8 to the provisions of The Governmental Tort Claims Act,
9 and all their institutions, instrumentalities or agencies;

10 13. "Scope of employment" means performance by an employee
11 acting in good faith within the duties of the employee's office or
12 employment or of tasks lawfully assigned by a competent authority
13 including the operation or use of an agency vehicle or equipment
14 with actual or implied consent of the supervisor of the employee,
15 but shall not include corruption or fraud;

16 14. "State" means the State of Oklahoma or any office,
17 department, agency, authority, commission, board, institution,
18 hospital, college, university, public trust created pursuant to
19 Title 60 of the Oklahoma Statutes of which the State of Oklahoma is
20 the beneficiary, or other instrumentality thereof;

21 15. "State active duty" shall be defined in accordance with
22 Section 801 of Title 44 of the Oklahoma Statutes;

23 16. "State military forces" shall be defined in accordance with
24 Section 801 of Title 44 of the Oklahoma Statutes;

1 17. "Title 32 active duty" shall be defined in accordance with
2 Section 801 of Title 44 of the Oklahoma Statutes; and

3 18. "Tort" means a legal wrong, independent of contract,
4 involving violation of a duty imposed by general law, statute, the
5 Oklahoma Constitution, or otherwise, resulting in a loss to any
6 person, association or corporation as the proximate result of an act
7 or omission of a political subdivision or the state or an employee
8 acting within the scope of employment; provided, however, a tort
9 shall not include a claim for inverse condemnation.

10 SECTION 2. AMENDATORY 51 O.S. 2021, Section 154, as
11 amended by Section 2, Chapter 314, O.S.L. 2025 (51 O.S. Supp. 2025,
12 Section 154), is amended to read as follows:

13 Section 154. A. The total liability of the state and its
14 political subdivisions on claims within the scope of The
15 Governmental Tort Claims Act, arising out of an accident or
16 occurrence happening after October 1, 1985, Section 151 et seq. of
17 this title, shall not exceed:

18 1. Seventy-five Thousand Dollars (\$75,000.00) for any claim or
19 to any claimant who has more than one claim for loss of property
20 arising out of a single act, accident, or occurrence;

21 2. a. Two Hundred Twenty-five Thousand Dollars (\$225,000.00)
22 to any claimant for any number of claims for
23 inconvenience, annoyance, or discomfort in nuisance
24 claims arising out of a single act, accident, or

1 occurrence in a county with a population of less than
2 one hundred fifty thousand (150,000) according to the
3 latest Federal Decennial Census, or

4 b. Two Hundred Seventy-five Thousand Dollars

5 (\$275,000.00) to any claimant for any number of claims
6 for inconvenience, annoyance, or discomfort in
7 nuisance claims arising out of a single act, accident,
8 or occurrence in a county with a population of one
9 hundred fifty thousand (150,000) or more according to
10 the latest Federal Decennial Census;

11 3. a. In no event shall the total liability of the state and
12 its political subdivisions for a claim for nuisance
13 exceed Two Hundred Seventy-five Thousand Dollars
14 (\$275,000.00) per occurrence.

15 b. In no event shall the total liability of the state and
16 its political subdivisions for a claim arising from
17 municipal sewer overflow exceed Two Hundred Seventy-
18 five Thousand Dollars (\$275,000.00) per occurrence;

19 4. Except as otherwise provided in this paragraph, Two Hundred
20 Fifty Thousand Dollars (\$250,000.00) to any claimant for a claim for
21 any other loss arising out of a single act, accident, or occurrence.
22 The limit of liability for the state or any city or county with a
23 population of one hundred fifty thousand (150,000) or more according
24 to the latest Federal Decennial Census, or a political subdivision

1 as defined in subparagraph s of paragraph 12 of Section 152 of this
2 title, shall not exceed Three Hundred Seventy-five Thousand Dollars
3 (\$375,000.00). Except, however, the limits of liability for the
4 University Hospitals and state mental health hospitals operated by
5 the Department of Mental Health and Substance Abuse Services for
6 claims arising from medical negligence shall be Three Hundred
7 Thousand Dollars (\$300,000.00). For claims arising from medical
8 negligence by any licensed physician, osteopathic physician or
9 Certified Nurse-Midwife rendering prenatal, delivery or infant care
10 services from September 1, 1991, through June 30, 1996, pursuant to
11 a contract authorized by subsection C of Section 1-106 of Title 63
12 of the Oklahoma Statutes and in conformity with the requirements of
13 Section 1-233 of Title 63 of the Oklahoma Statutes, the limits of
14 liability shall be Two Hundred Thousand Dollars (\$200,000.00);

15 5. One Million Dollars (\$1,000,000.00) for any number of claims
16 for indemnification pursuant to Section 162 of this title arising
17 out of a single occurrence or accident; or

18 6. Two Million Dollars (\$2,000,000.00) in the aggregate for any
19 number of claims arising out of a single occurrence or accident.

20 B. 1. Beginning on May 28, 2003, claims shall be allowed for
21 wrongful criminal felony conviction resulting in imprisonment if the
22 claimant has received a full pardon on the basis of a written
23 finding by the Governor of actual innocence for the crime for which
24 the claimant was sentenced or has been granted judicial relief

1 absolving the claimant of guilt on the basis of actual innocence of
2 the crime for which the claimant was sentenced. The Governor or the
3 court shall specifically state, in the pardon or order, the evidence
4 or basis on which the finding of actual innocence is based.

5 2. As used in paragraph 1 of this subsection, for a claimant to
6 recover based on "actual innocence", the individual must meet the
7 following criteria:

- 8 a. the individual was charged, by indictment or
9 information, with the commission of a public offense
10 classified as a felony,
- 11 b. the individual did not plead guilty to the offense
12 charged, or to any lesser included offense, but was
13 convicted of the offense,
- 14 c. the individual was sentenced to incarceration for a
15 term of imprisonment as a result of the conviction,
- 16 d. the individual was imprisoned solely on the basis of
17 the conviction for the offense, and
- 18 e. (1) in the case of a pardon, a determination was made
19 by either the Pardon and Parole Board or the
20 Governor that the offense for which the
21 individual was convicted, sentenced and
22 imprisoned, including any lesser offenses, was
23 not committed by the individual, or
24

1 (2) in the case of judicial relief, a court of
2 competent jurisdiction found by clear and
3 convincing evidence that the offense for which
4 the individual was convicted, sentenced and
5 imprisoned, including any lesser included
6 offenses, was not committed by the individual and
7 issued an order vacating, dismissing or reversing
8 the conviction and sentence and providing that no
9 further proceedings can be or will be held
10 against the individual on any facts and
11 circumstances alleged in the proceedings which
12 had resulted in the conviction.

13 3. A claimant shall not be entitled to compensation for any
14 part of a sentence in prison during which the claimant was also
15 serving a concurrent sentence for a crime not covered by this
16 subsection.

17 4. The total liability of the state and its political
18 subdivisions on any claim within the scope of The Governmental Tort
19 Claims Act arising out of wrongful criminal felony conviction
20 resulting in imprisonment shall not exceed One Hundred Seventy-five
21 Thousand Dollars (\$175,000.00).

22 5. The provisions of this subsection shall apply to convictions
23 occurring on or before May 28, 2003, as well as convictions
24 occurring after May 28, 2003. If a court of competent jurisdiction

1 finds that retroactive application of this subsection is
2 unconstitutional, the prospective application of this subsection
3 shall remain valid.

4 C. 1. No award for damages in an action or any claim against
5 the state or a political subdivision shall include punitive or
6 exemplary damages.

7 2. In an action or claim against the state or a political
8 subdivision for damage to property, the court may award a prevailing
9 plaintiff court costs and expenses including, but not limited to,
10 reasonable attorney, appraisal, and engineering fees actually
11 incurred.

12 D. When the amount awarded to or settled upon multiple
13 claimants exceeds the limitations of this section, any party may
14 apply to the district court which has jurisdiction of the cause to
15 apportion to each claimant the claimant's proper share of the total
16 amount as limited herein. The share apportioned to each claimant
17 shall be in the proportion that the ratio of the award or settlement
18 made to each claimant bears to the aggregate awards and settlements
19 for all claims against the state or its political subdivisions
20 arising out of the occurrence. When the amount of the aggregate
21 losses presented by a single claimant exceeds the limits of
22 paragraph 1, 2, 3, or 4 of subsection A of this section, each person
23 suffering a loss shall be entitled to that person's proportionate
24 share.

1 E. The total liability of resident physicians and interns while
2 participating in a graduate medical education program of the
3 University of Oklahoma College of Medicine, its affiliated
4 institutions and the Oklahoma State University College of
5 Osteopathic Medicine shall not exceed One Hundred Fifty Thousand
6 Dollars (\$150,000.00).

7 F. The total liability of a public trust hospital and physician
8 for the acts of a physician who provides medical services on the
9 premises of a public trust hospital, as provided by Section 152 of
10 this title, that is located in a county with a population of fewer
11 than seventy-five thousand (75,000) according to the latest Federal
12 Decennial Census, but who is not employed by such hospital, shall
13 not exceed One Million Dollars (\$1,000,000.00). If the physician is
14 employed by another group or entity not under the sole or majority
15 control of the physician, the total limit of liability of the
16 physician and hospital shall be the higher coverage afforded by the
17 liability policy, self-insurance, or assets of that group or entity.

18 G. For claims within the scope of The Governmental Tort Claims
19 Act, the liability limits in this section for claims on or after the
20 effective date of this act shall be adjusted beginning January 1,
21 2031, and every five (5) years thereafter for inflation to reflect
22 the lesser of the percentage change in the Consumer Price Index
23 published by the Bureau of Labor Statistics of the United States
24

1 Department of Labor for such period or four percent (4%) in any
2 five-year period.

3 H. The state or a political subdivision may petition the court
4 that all parties and actions arising out of a single accident or
5 occurrence shall be joined as provided by law, and upon order of the
6 court the proceedings upon good cause shown shall be continued for a
7 reasonable time or until such joinder has been completed. The state
8 or political subdivision shall be allowed to interplead in any
9 action which may impose on it any duty or liability pursuant to The
10 Governmental Tort Claims Act.

11 I. The liability of the state or political subdivision under
12 The Governmental Tort Claims Act shall be several from that of any
13 other person or entity, and the state or political subdivision shall
14 only be liable for that percentage of total damages that corresponds
15 to its percentage of total negligence. Nothing in this section
16 shall be construed as increasing the liability limits imposed on the
17 state or political subdivision under The Governmental Tort Claims
18 Act.

19 SECTION 3. This act shall become effective November 1, 2026.
20

21 60-2-4002 TEK 4/28/2026 11:03:38 AM
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